

IT Act 2000

Information Technology Act, 2000

Information Technology (IT) Act, 2000

User Query :

My personal email account was accessed without my permission after I clicked a suspicious link. The person downloaded private documents, changed my password and later shared some confidential files with other people. I was locked out of the account until I recovered it. What legal provisions may apply to the unauthorized access and disclosure of my information?

Job Id. : Scenario 11/Information Technology (IT) Act, 2000

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NyaySahayak

AI-Powered Legal Intelligence Platform

✓ STRENGTHS & RIGHTS

1

Strong Safeguards for Personal Data

Section 72A explicitly prohibits unauthorized disclosure of personal information, aligning with India's evolving digital privacy standards.

2

Admissibility of Digital Evidence

Section 65B allows electronic records (e.g., email logs, IP traces) to be admitted in court as evidence, aiding your case.

3

Clear Liability

Sections 66 and 72A impose strict penalties, deterring cyber intruders and providing victims a direct legal remedy.

✗ RISKS & OBLIGATIONS

1

Severe Penalties for Offenders

2

Section 66

Imprisonment up to 3 years + fine (**Section 66** (1)).

3

Section 72A

Imprisonment up to 2 years + fine up to ₹1 lakh (**Section 72A** (1)).

4

Burden of Proof

You must prove the perpetrator's intent (e.g., via email logs, IP addresses), which may require technical expertise.

5

No Distinction for Accidental Breach

Sections 66/72A penalize *intentional* breaches; accidental access (e.g., via phishing) may not qualify, but *intentional disclosure* (sharing files) is clearly covered.

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